

ORDER SHEET**IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT****Case No.**

Crl. Misc. No.14102-B of 2014

Mumtaz Ahmad**Versus****The State etc.**

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
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- 6). 03.12.2014. Ch. Muhammad Rafique-IV, Advocate along with the petitioner.
Mr. Muhammad Arshad Farooqi, Deputy District Public Prosecutor along with Tanvir DSP (Legal), Afzal Incharge Investigation with record.
Mian Muhammad Javed, Advocate for the complainant.

Mumtaz Ahmad, petitioner seeks bail before arrest in case FIR No.593 dated 27.08.2013, offence under Sections 468 and 471 PPC registered at Police Station City Depalpur District Okara.

2. The allegation against the petitioner is that in a case bearing FIR No.612 dated 11.12.2010 under section 365 PPC Police Station Basirpur Tehsil Depalpur District Okara petitioner applied for his pre-arrest bail which stood dismissed by Mr. Khizar Hayat, learned Addl. Sessions Judge, Depalpur, vide order dated 06.06.2011. Subsequent pre-arrest bail application filed by petitioner before Lahore High Court, Lahore, also met the same fate. Thereafter on 10.10.2011 petitioner again filed pre-arrest bail application before learned Addl. Sessions Judge, Depalpur, with false certificate that earlier pre-arrest bail application filed by him was dismissed for non-prosecution by Mr. Khalid Mehmood, Addl. Sessions Judge, Depalpur and also appended an affidavit with the application to this effect. The said bail application was dismissed for non-prosecution vide order dated 17.10.2011. The petitioner instead of surrendering himself before the law remained absconder for about two year and on 10.07.2013 again filed pre-arrest bail application before learned Addl. Sessions Judge, Depalpur, with same false certificate and

affidavit and the bail application was dismissed by Mr. Bakhat Fakhar, learned Addl. Sessions Judge, Depalpur. On the basis of above facts, complainant lodged the instant FIR against the petitioner.

3. Heard and record perused.

4. I am astonished to peruse the police record of this case which reflects that the FIR was registered under Sections 468 and 471 PPC, investigation has been conducted by Muhammad Ashraf SI and incomplete report under Section 173 of the Code of Criminal Procedure, 1898 has been prepared by the SHO concerned which has been forwarded to the learned trial court through Mr. Riaz Ahmad Khan Baloch, Assistant District Public Prosecutor, Depalpur District Okara on 20.10.2014 without noticing the fact that the offences alleged and supra provisions of law applied against the petitioner constitute non-cognizable offences and in such like matters, the Code of Criminal Procedure, 1898 has prescribed a procedure in Section 155 while proceedings under Section 154 *ibid* are not warranted by law. As regards dismissal of bail application in hand for the reason that Section 193 PPC is applicable against the present petitioner, as argued by the learned Deputy District Public Prosecutor, I, in view of the mandatory provisions of law i.e. Sections 195 and 476 of the Code of Criminal Procedure, 1898 which provide the procedure to proceed against the accused of offence under Section 193 PPC that too is a non-cognizable offence, do not find it tenable in the eye of law. In cases of non-cognizable offences only, the registration of FIR and consequent investigation of case is not warranted by law and if a police officer investigates in a case of non-cognizable offence without the permission of a competent Magistrate, he violates the directions of law provided u/s 155(2) Cr.P.C.

5. The provisions of section 155(2) of Cr.P.C are mandatory in nature and the object of law is to provide protection to the citizens from police excesses. If the police is extended the liberty to start investigation in cases of non-cognizable offences, to arrest the accused persons and submit challan in the Court for trial of the accused, the distinction in the cognizable and non-cognizable offences would vanish and the citizens would be exposed to all kinds of police highhandedness and exploitations in non-cognizable offences. I am of the view that under the law a police officer has no authority to arrest a person in a non-cognizable offence without warrants issued by the competent Magistrate, to take in hand investigation of the case and to submit a report to Court. Reliance in this respect is placed on the esteemed judgments in the cases of Irshad Begum and another v. The State (PLD 1961 (W.P.) Lah. 882), Hussain Bakhsh v. The State (PLD 1963 (W.P.) Lah. 46), Muhammad Bashir alias Doba v. The State (PLD 1988 Lah. 574) and Mukhtar alias Karoo v. The State (1988 P Cr. L J 591). Having guidance from the referred judgments I hold that the registration of FIR in the instant case and the investigation conducted by the police officer are having no sanctity in the eye of law.

6. I am also astounded to know that probably, due to lack of proper assistance, the learned Additional Sessions Judge dismissed the application for pre-arrest bail moved by present petitioner in this case of non-cognizable offence vide his order dated 25.09.2014 without noticing the factual and legal aspects of the case discussed above.

7. In view of my above observations, I do not find it required under the law to pass order for confirmation of ad-interim pre-arrest bail already granted to petitioner. The petitioner would be at liberty to seek the relief, if so advised,

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or required by the concerned court under Section 91 or 496 etc. of the Code of Criminal Procedure, 1898.

8. However, before parting with the order I find it necessary to direct the concerned District Police Officer and District Incharge of Prosecution Department to proceed with the matter in issue strictly in accordance with law

9. Disposed of in the above terms.

(Syed Shahbaz Ali Rizvi)
Judge

APPROVED FOR REPORTING:

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'Javaid'

Judge